

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 05/13/2026

Case #	Case Name	Tentative
		TENTATIVE RULING Case: Calendar No.: 1 Date: 05/13/26
01415299	Campbell - Trust	TENTATIVE RULING Case: 01415299 Calendar No.: 2 Date: 05/13/26 <u>MOTIONS TO QUASH SUBPOENA (ROAs 49-53)</u> Respondent Sharon A. Campbell ("Respondent") moves to quash five subpoenas issued to various financial institutions by Petitioner Daniel Campbell. Respondent's request for judicial notice (ROA 177) is granted as to exhibits 1 and 2. Respondent first moves to quash the subpoenas on the grounds that Petitioner lacks standing to bring the causes of action set forth in his petition. The California Supreme Court in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531 (<i>Williams</i>) held that "the way to raise lack of standing is to plead it as an affirmative defense, and

thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing.” (*Id.* at p. 558-559.) “To show the merits of one’s case has never been a threshold requirement for discovery.” (*Id.* at 558.) The Discovery Act permits “any party” to conduct discovery. (Code Civ. Proc. § 2017.010.)

Consistent with the Supreme Court’s holding in *Williams*, the Court of Appeal for the Fourth District recently noted that objections based on lack of standing are properly raised in a dispositive motion, not in a discovery responses. (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902, fn. 7.)

Respondent next moves to quash the subpoenas on the grounds of privacy.

Whether documents protected by the right of privacy must be produced is evaluated under the standard set *Williams*:

“The party asserting a privacy right must establish a legally protected privacy interest, and objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interest disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. To the extent prior cases require a party seeking discovery of private information to always establish a compelling interest or compelling need, without regard to the other considerations articulated in *Hill v. National Collegiate Athletic Assn.*, *supra*, 7 Cal.4th 1, 26 Cal.Rptr.2d 834, 865 P.2d 633, they are disapproved.”

(*Williams*, 3 Cal.5th at 557).

Here, Respondent has established a legally protected privacy interest in her bank records. Respondent has a reasonable expectation of privacy concerning her finances which is threatened by the subject subpoenas. Petitioner has raised an important countervailing interest in seeking to prove, and ultimately protect Respondent from, financial elder abuse. There is no feasible alternative way to establish financial elder abuse without reviewing the elder’s financial records. The

		court finds that the countervailing interest outweighs the privacy interest in this case. Nonetheless, in balancing the parties’ respective interests and needs, the court finds the subject subpoenas are overbroad and must be significantly tailored. The subject subpoenas essentially seek every document concerning every known bank account affiliated with Respondent, Respondent’s estate, and Respondent’s trust for a nine-year period. While Petitioner argues that the subject subpoenas seek “standard categories of financial records that are routinely produced in trust litigation and elder abuse cases,” most cases involve an elder who is no longer living and, thus, without privacy rights. The Petition alleges specific incidents demonstrating mental incapacity beginning in 2023. (ROA 2, ¶ 23-25.) The Petition alleges specific incidents concerning Respondent’s conduct toward Petitioner beginning in 2024. (Id. at ¶ 26-41.) Thus, the subject subpoenas should be limited to the time period commencing 2023. Moreover, the subpoenas should not request any tax statements, which are privileged. And the request for “communications” could be limited to communications involving Respondent who is the one accused of perpetrating financial abuse. The court is inclined to continue this motion for counsel to meet and confer as to the scope of the subpoena, as well as the language to be included in a protective order. The parties should be prepared to discuss.
		TENTATIVE RULING Case: Calendar No.: 3 Date: 05/13/26
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		TENTATIVE RULING Case: Calendar No.: 9 Date: 05/13/26
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